

2.7 Tourist Oriented Directional Signs (TODS) Policy

2.7.1 Purpose, Authority, and Authorization

2.7.1.1 Purpose

The purpose of this policy is to establish guidelines for the installation of signs within State highway right-of-way to guide travelers to businesses, services, and attractions in which the traveling public would have reasonable interest. These guidelines include the eligibility, location, design, installation, cost, and maintenance of these signs, which herein after will be referred to as “TODS.”

2.7.1.2 Authority

The provisions of this chapter are promulgated under 75 Pa.C.S. §6125(d).

2.7.1.3 Authorization

Only Department approved TODS may be installed within the State highway right-of-way. However, the authorization of signs is not an endorsement of the applicant’s facilities.

2.7.2 Definitions

The following words and terms, when used in this policy, have the following meanings, unless the context clearly indicates otherwise:

Attraction – Any facility which qualifies for signing under this policy.

Conventional road – Any free-access public highway other than a freeway or expressway.

Department – The Department of Transportation of the Commonwealth of Pennsylvania.

Expressway – A divided arterial highway for through traffic with partial control of access and with interchanges at junctions with high-volume highways. For purposes of this policy, sections of expressway with at-grade intersections will be considered as a “conventional road,” and sections of expressway with interchanges will be considered as “freeway.”

Freeway – A divided highway with full control of access to which the only means of ingress and egress is by interchange ramps.

Local authorities – County, municipal and other local boards or bodies, and State agencies other than the Department having authority to enact regulations relating to traffic. The term includes governing bodies of colleges, universities, public and private schools, public and historical parks, and airport authorities except where those authorities are located within cities of the first class or cities of the second class.

Official traffic control devices – Signs, signals, markings, and devices consistent with 75 Pa.C.S. (relating to Vehicle Code) and Department regulations, placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic.

On-premise sign – A sign which is erected upon the same real property that the business, facility or point of interest is located. The signs shall only advertise the business, facility or point of interest located thereon.

Rural area – Any geographic area which is not included in an urban area on the Department's County Functional Classification Maps.

Rural conventional road – Any public conventional road in a rural area.

Seasonal business – Any business which is not operated on a year-round basis. The business shall be responsible for covering or removing signs as outlined in [Section 2.7.10](#).

Secretary – The Secretary of the Department.

Signing district – A geographical area for which a governmental sponsor is willing to enter into an agreement with the Department to coordinate, provide, install and maintain all signing authorized by and in conformance with this policy after approval by the Department, without bias to any businesses and at no cost to the Department. In order to ensure that the sponsor has the support of the attractions, a public hearing is required. When the signing district concept is used, alternate sign designs may be authorized.

TODS – An official sign that is located within the right-of-way of a conventional road that indicates the name of an attraction and gives directional guidance to the same.

TODS Assembly – A single TODS installation consisting of sign posts, anchor posts, and a maximum of three individual signs.

Urban area – Any geographic area with a population of 5,000 or more inhabitants, with boundaries fixed by State and local officials in cooperation with each other, approved by the Secretary, and designated as an urban area on the Department's County Functional Classification Maps.

Urban conventional road – Any public conventional road in an urban area.

2.7.3 General Eligibility Requirements

2.7.3.1 General

The attraction shall be open to all persons regardless of race, color, religion, ancestry, national origin, sex, age or handicap; be neat, clean and pleasing in appearance; be maintained in good repair; and comply with all Federal, State and local regulations and statutes for public accommodations concerning health, sanitation and safety. Pursuant to federal regulations promulgated under the authority of The Americans With Disabilities Act, 28 C.F.R. §35.101, et seq., the participant understands and agrees that no individual with a disability shall, on the basis of the disability, be excluded from the attraction.

2.7.3.2 Distance to Services

Except as otherwise provided in this policy, on all conventional roads, the maximum distance from the intersection for which attractions can be trail blazed and qualify for TODS shall be 5.0 miles.

2.7.3.3 Local Ordinance

TODS shall not be installed when prohibited by local ordinance.

2.7.3.4 Admission Charges

If a general admission is charged, it shall be collected upon entry and any other charges shall be clearly displayed, at the place of entry, so as to be readily visible to an ordinarily observant person.

2.7.3.5 Hours of Operation

Attractions other than arenas, schools, colleges/universities, campgrounds, cultural centers, fairgrounds, farmer's markets, religious sites, roadside farm markets, and military bases shall maintain regular hours and schedules and be open to the public at least 6 days each week for at least 3 consecutive months of the year. In addition, farmers markets and roadside farm markets shall maintain regular hours and schedules and be

open to the public at least 2 days each week during the normal business season.

2.7.3.6 Other Signs

TODS will not be authorized if an illegal advertising sign exists along any State highway for that specific business, or if a legal advertising sign exists on the same highway approach as the request for a TODS. In addition, if the attraction has in place any other Department-approved signing, additional signing or redundant signing will not be authorized on the same highway approach.

2.7.3.7 Sufficient Space

Sufficient space exists in accordance with [Sections 2.7.6.2](#) and [2.7.6.3](#) to install signs at all locations along the route to the attraction where a turn is required.

2.7.3.8 On-premise Sign

The attraction shall have an on-premise sign identifying the name of the facility. If the facility or its on-premise signing is readily visible from the highway, a TODS shall not be placed immediately in advance of the business.

2.7.3.9 Parking Accommodations

The attraction shall have adequate on-premise or available on-street parking for patrons.

2.7.3.10 Road System

The location of the attraction shall not require motorists to perform any illegal movements or U-turns, and the roads shall be capable of handling the anticipated traffic volume and types of traffic. Motorists shall be able to readily return to the highway and proceed in the original direction of travel after visiting the attraction. This may result in the attraction being required to install signing to guide the motorist to their original direction of travel.

2.7.3.11 Route Continuity

TODSs will be installed in advance of all necessary turns subsequent to the initial TODS installation. If a sign is required on a local roadway between a State highway and the attraction, the local authorities must authorize and are responsible for the installation of the sign (by

themselves or by others) on their roadway prior to the installation of signs on any State highway that would direct motorists to that local roadway.

2.7.4 Additional Eligibility Requirements

2.7.4.1 General

Additional eligibility requirements may apply depending on the type of highway and the type of area where the signs are to be installed. The requirements are less restrictive for signs installed along rural conventional roads than for signs installed along urban conventional roads.

2.7.4.2 Rural Conventional roads

TODSs may be authorized along any rural conventional road for the eligible types of attractions as defined in either [Section 2.7.5.1](#) or [Section 2.7.5.2](#), which meet the general eligibility requirements under [Section 2.7.3](#), and are approved by the local municipalities within which TODSs are to be located. The approval of the local authorities is not required for a TODS installed to direct motorists to attractions operated by State or federal agencies.

2.7.4.3 All Conventional roads

TODSs may be authorized along any conventional road either urban or rural for eligible types of attractions as defined in [Section 2.7.5.2](#), which meet the general eligibility requirements under [Section 2.7.3](#), the attendance provisions of [Section 2.7.5.3](#), and are approved by the local municipalities within which the TODSs are to be located. The approval of the local authorities is not required for a TODS installed to direct motorists to attractions operated by State or Federal agencies or signs installed under a signing region as defined in [Section 2.7.9](#).

2.7.5 Eligible Types of Attractions

2.7.5.1 Rural Conventional roads

An attraction which satisfies one or more of the following definitions and the provisions of [Section 2.7.3](#) may be considered for a TODS only along rural conventional roads:

Bed and breakfast – A private residence located in a rural area that contains 10 or fewer bedrooms used for providing overnight

accommodations to the public, and in which breakfast is the only meal served and is included in the charge for the room.

Observatory – A facility designed and equipped for making observations of astronomical, meteorological, or other natural phenomena.

Recreational activity – Boating, rafting activities, spelunking, and other recreational activities recognized by the Department.

Specialty shop – A shop offering goods or services of unique interest to tourists, and which derives the major portion of its income during the normal business season from motorists that do not reside in the immediate area. The goods or services shall be readily available to tourists, without the need for scheduling appointments or return trips. The Department's appropriate Engineering District Office will screen these shops to determine eligibility.

Unique natural area – A naturally occurring area which is of outstanding interest to the general public, such as a waterfall or a cavern.

2.7.5.2 All Conventional roads

An attraction which satisfies one or more of the following definitions, the provisions of [Section 2.7.3](#), and the any minimum attendance provisions of this section may be considered for TODSs along any conventional road either urban or rural.

Airport – A public-use facility licensed by the Department for the landing and takeoff of aircraft, and for receiving and discharging passengers and cargo.

Amusement park – A permanent area which is open to the general public for entertainment rides.

Arena – A stadium, sports complex, auditorium, civic center or racetrack, which has a seating capacity of at least 5,000.

Business district – An area within a city or borough which is officially designated as a business district by the local officials.

Campground – An area reserved for at least 20 tents or recreational vehicles, which possesses a valid permit from the Pennsylvania

Department of Environmental Protection and is open to the public with continuous operation for at least 6 months per year.

College or university – An institution which is approved by a nationally-recognized accreditation agency and which grants degrees.

Commerce park – A group of commercial manufacturing facilities, at least 25 acres in size, recognized and signed as a commerce park by the local authorities.

Cultural center – A facility for the performing arts, exhibits, or concerts which has a minimum occupancy capacity of 250 people.

Facility, tour location – A facility, such as a plant, factory, or institution which conducts daily or weekly public tours on a regularly scheduled basis year-round.

Fairground – A commercially-operated tract of land where fairs or exhibitions are held, and which has permanent buildings included but not limited to livestock exhibition pens, exhibition halls, bandstands, etc.

Farmer's market – A building, structure, or place used by two or more farmers or an association of farmers for the purpose of selling farm and food products, including but not limited to fruits, vegetables, flowers, meats and baked goods, at least 2 days per week throughout the year or harvest season.

Golf course – A facility open to the public and offering at least nine holes of play. Miniature golf courses, driving ranges, chip and putt courses, and indoor golf shall not be eligible.

Historical site – A structure or area recognized by the Pennsylvania Historical and Museum Commission as a historic attraction that has national or state significance and is cited in publications or magazines. Historic districts shall provide the public with a single, central location, such as a self-service kiosk or welcome center, where motorists can obtain information regarding the historic district.

Hospital – A hospital approved by the Department of Health which offers continuous emergency care for the general human public, and with a doctor on duty at all times. When applicable, the term "trauma center" may be used on the sign.

Institution – A health care center operated by a county, State, or federal government.

Library – A building that stores books, manuscripts, historic documents, and other information sources for use by the public, but not for sale.

Military base – A facility operated by the State or federal government for training or support of military troops, or for inventorying and warehousing military equipment.

Municipal buildings – A building housing the primary offices for city, borough, township, or county authorities.

Museum – A facility that cares for and exhibits works of artistic, historical, or scientific value for the public.

Off-track betting facility – A facility that provides off-premise wagering as authorized by Act 1988-127.

Park – An area which is open to the general public with on-premise parking for activities such as picnicking, hiking, swimming, boating, basketball, tennis, etc.

Religious site – A facility of unique religious nature, including a shrine, grotto, or similar type facility.

Resort – A facility with at least 75 rooms and those recreational amenities normally present at a facility, and which is the main focal point of a vacation. In order to qualify as a resort, the facility should be situated to take advantage of natural, historic or recreational attractions. Meals and the use of recreational facilities should normally be included in the room rate.

Roadside farm market – A stationary retail sales establishment operated by one or more farmers for the purpose of selling farm and food products directly to consumers. Operations by which the consumer harvests their own farm or food products shall be considered roadside farm markets. Roadside farm markets shall be open at least 2 days per week throughout the harvest season or year. On-premise or legal on-street parking shall be available as provided in [Section 2.7.3.11](#).

School – Any facility for education wherein a resident of the Commonwealth can legally fulfill compulsory school requirements

for any one or more grades, including kindergarten through grade 12.

Shopping center – A group of 30 or more specialty shops (antique, craft, outlet, farmers' market, etc.) or retail stores with ample parking facilities.

Ski area – A downhill skiing area with equipment rentals, or a cross country ski area with equipment rentals and a minimum of 5 miles of marked and groomed trails.

State and national park, recreation area, forest or cemetery – An area so designated and under the jurisdiction of the National Park Service, the Veterans Administration, or Pennsylvania Department of Conservation and Natural Resources. The mileage requirement for these facilities may be extended a reasonable distance to accommodate driver need.

Transportation terminal – A bus or railroad passenger terminal, complete with ticket sales.

Visitor information – A facility approved by the Department of Commerce as a visitor information center, and which is open at least 6 months each year, including 10 hours each day between Memorial Day and Labor day, and 8 hours each day during the balance of the open season. The facility shall have an attendant on duty during open hours, and provide free access to travel literature, rest rooms and drinking water. Centers other than those owned and operated by the Commonwealth of Pennsylvania must be administered or approved by the appropriate local tourist promotion agency.

Winery – A licensed site which produces a maximum of 200,000 gallons of wine per year. Sites shall maintain a minimum of 3,000 vines or 5 acres of vineyard in the Commonwealth; be open to the public for tours, tasting and sales a minimum of 1,500 hours per year and provide an educational format for informing visitors about wine and wine processing.

Zoological/botanical park – A collection of unique living animals or plants.

2.7.5.3 Minimum Attendance

In urban areas, attractions other than airports, transportation terminals, campgrounds, hospitals, commerce parks, roadside farm markets, schools,

transportation terminals, visitor information centers, and publicly owned or operated facilities, shall have a minimum of 15,000 visitors per year. In urban areas, new facilities or those open to the public less than 12 months shall have invested at least \$250,000 and anticipate at least the above minimum number of visitors. There is no minimum attendance required for attractions in rural areas.

2.7.6 Location, Spacing, and Design of TODSs for Conventional roads

2.7.6.1 General

TODSs may be installed to direct traffic to each entrance of an eligible attraction beginning at the nearest access point from a conventional road with an average of at least 2,000 vehicles per day. Signs shall not be authorized to direct motorists onto or off of any freeway or expressway. Signs with straight ahead arrows will not be authorized, except where the Department deems necessary to provide positive guidance.

2.7.6.2 Location.

Install TODSs in advance of the intersection where a motorist leaves the primary highway system and at all subsequent locations where the motorist is required to turn in order to travel to the attraction. When the attraction, or the attraction's on-premise sign, is readily visible from the highway, do not install a TODS immediately in advance of the attraction. All TODSs should be on the right-hand side of the highway and where sufficient space is available.

TODSs should be located to take advantage of natural terrain, to minimize the impact on the scenic environment, and to avoid visual conflict with other signs within the highway right-of-way. Department-approved breakaway sign supports shall be used.

When an at-grade intersection on a primary highway is replaced with an interchange, the location shall no longer qualify for TODSs and any TODS previously erected shall be removed by the Department.

TODSs shall be located so as not to interfere with, obstruct, or divert driver's attention from any official traffic control device. Official traffic control devices placed at intersection approaches subsequent to the placement of TODSs shall have precedence as to location and may require the relocation of TODSs. In general, TODSs shall be installed at least 200 feet from other official traffic control devices.

TODSs shall be positioned in such a manner that does not restrict drivers' vision when entering the highway from side roads or driveways.

TODS sign panels shall not be displayed for any business which is readily visible and identifiable within 200 feet along the highway.

2.7.6.3 Spacing

TODSs shall be located not less than 200 feet nor more than 1,320 feet in advance of a location where a turn is required from the highway. At intersections where more than one TODS assembly is required, the minimum spacing between such assemblies should be 200 feet. The maximum number of TODS assemblies at an intersection shall be two.

2.7.6.4 Design of TODSs on Conventional roads

Sign layout shall be in accordance with [Exhibit 2.7-A](#). Each TODS shall have one or two lines of legend which should generally be limited to the name of the attraction or an abbreviation thereof. A maximum of 16 letters and spaces shall be permitted on each line unless specific approval for an increased number of letters and spaces is granted by the Department. Legends shall not include promotional advertising.

Generally, a directional arrow shall be required. If the distance to the business is 1/4 mile or greater, the distance in miles should be included below the arrow. The distance may be 1/4, 1/2, 3/4, or the nearest whole mile. When necessary, the sign may have a full-width message without a directional arrow, with a second line message such as “DRIVEWAY ON LEFT,” “LEFT 500 FEET,” “RIGHT AT STOP SIGN,” etc.

The standard sign size shall be 72"x24". Where insufficient right-of-way exists, smaller signs measuring 48"x16" may be authorized. All signs shall be of the same size where multiple TODSs are installed on a single sign assembly.

TODSs shall have white reflectorized legend and border on a blue reflectorized background. A brown reflectorized background may be authorized for State and National parks, recreational areas and historical sites. All signs shall be fabricated by a Department-approved sign manufacturer using a Department-approved Type III or IV retroreflective sheeting.

Generic symbols may be used on TODSs at the beginning of the legend area. Any generic symbol included in [Exhibit 2.7-B](#), or included as a recreational or cultural interest area symbol in either the FHWA's *Standard Highway Signs and Markings* book or the *MUTCD* is permitted for use.

2.7.6.5 Arrangement.

TODSs will normally be installed as independent sign assemblies. A maximum of six TODSs shall be authorized for installation on any approach to an intersection.

When the number of TODSs at an intersection approach is three or less, the signs shall be grouped together with signs displaying arrows pointing to the left above those pointing to the right. If any TODSs with straight-ahead arrows (as is the case where the road turns and the access is straight-ahead) are authorized, the sign for the straight-ahead attraction shall be installed above any signs for attractions to the left or to the right; except that seasonal attractions shall be mounted below all other signs regardless of orientation of directional arrow.

If the number of TODSs at an intersection approach is more than three, the signs shall be grouped as two separate sign assemblies with a maximum of three signs per assembly. The first sign assembly should generally be limited to attractions with straight-ahead or left arrows, and the second sign assembly will generally be limited to attractions with right arrows. Install seasonal businesses on the second assembly.

If more than one business exists in a given direction, the signs for a closer business shall be mounted above the more distant business.

The top of the sign assembly shall be a minimum of 9 feet above the ground. The bottom sign shall be a minimum of 5 feet above the near edge of roadway and 7 feet above the ground where pedestrian traffic may exist.

2.7.7 Sign Installation, Cost and Maintenance

2.7.7.1 Installation

The Department will normally supply and install all TODSs. However, the Department reserves the right to require that applicants arrange for signs to be supplied, installed, and maintained by a private contractor after the Department approval for the installation. At locations where sidewalks exist, local authorities will be requested to install the signs or authorize the attraction's private contractor to install the signs. The following are situations when the Department does not normally install the TODSs:

- When the signing district concept is used, the sponsor shall be responsible to have signs manufactured and installed after

receiving Department approval of the proposed sign design and locations.

- At locations where sidewalks exist, local authorities will be requested to install the signs.
- When TODSs are required on local roads, signs shall be manufactured by a Department-approved sign manufacturer, and installed in accordance with Department standards.
- At the discretion of the Engineering District Office, for example, when the county has a significant backlog of signing work.

Upon completion of the TODS sign installation(s), each applicant shall notify the appropriate Engineering District. Upon an inspection by Engineering District personnel, if the installation is unacceptable, the applicant will be advised in writing to have the situation corrected. Upon re-inspection, if the installation is again unacceptable, or the applicant does not notify the Engineering District of the installation within 10 working days upon completion, the Department may remove the sign and the business will not be reimbursed for the sign costs or the administrative fee noted in the application ([Exhibit 2.7-D](#)).

2.7.7.2 Costs

Each applicant shall be responsible for all costs incurred for the TODSs and their installation. In addition, the applicant shall be responsible for all costs incurred due to the adjustment, relocation, covering or removal of TODSs to comply with the requirements set forth in this policy.

With all new applications, the applicant is required to pay a \$100 administrative fee will be billed to the applicant following review and approval of the TODS request. Attractions requesting replacement signs for an approved facility are not required to pay additional administrative fees.

The attraction is directly responsible for any payments made to municipalities and private contractors for the installation of signs. The attraction is responsible for the assuring the work done by private contractors is in accordance with Department standards.

When the Department installs TODSs, the cost of each sign (D7-4) will be as follows:

72"x24" Standard TODS	\$650
48"x16" Smaller TODS	\$520

2.7.7.3 Maintenance

The Department will perform minor maintenance for Department-installed signs such as straightening posts or signs, and reserves the right to maintain, and adjust all signs within its right-of-way. If a replacement sign is necessary due to deterioration, crash or vandalism, the attraction shall be responsible for the sign replacement. If the replacement of a Department-installed sign is necessary, the attraction shall be responsible for the same payment as a new sign. (The Department will provide a cost estimate to the attraction for its concurrence prior to replacing a sign.)

2.7.7.4 Removal

The Department will notify attractions if they observe a TODS in a state of disrepair, and if the attraction has not taken corrective action within 60 days after notification, the Department will remove any sign with no reimbursement for sign costs or administrative fees.

2.7.7.5 Missing Signs

It is the responsibility of the owner of the attraction to review their signs and to advise the Department of any missing signs as soon as the problem exists. Failure to ensure that all signs are in place shall be cause for removal of all remaining signs.

2.7.7.6 Cooperation

Attractions requiring signs to be installed at the same location are encouraged to work with other attractions to share costs when the work is being done by private contractor(s).

2.7.8 Signing Districts

2.7.8.1 General

As opposed to signing individual facilities from the nearest access point from a conventional road with an average of at least 2,000 vehicles per day, the purpose of a signing district is to provide an overall, uniform signing concept for various facilities located in a central geographical area. A cohesive signing concept may encourage traffic flow to general destinations including, but not limited to cultural attraction areas, recreational attraction areas, shopping areas, and universities, and may then direct motorists to specific attraction locations.

2.7.8.2 Agreement

In order to establish a signing district, a governmental sponsor shall submit an application to the Department (see [Exhibit 2.7-E](#)) and agree to enter into an agreement with the Department to coordinate, obtain, erect and maintain all signs associated with the signing district. The governmental sponsor must ensure that all facilities eligible for signing under this chapter are provided an opportunity to participate in the signing district. A public meeting shall be held to provide attractions with an opportunity to become involved. The removal of existing “illegal” or permitted advertising signs shall be evaluated to avoid and reduce sign clutter on the highways.

Design Sign designs and color schemes will comply with those indicated in [Section 2.7.6.4](#). As an alternate, signing schemes referenced in the PennDOT Toolbox for Development of a Wayfinding Signing Region may be used. See [Section 2.7.9.2](#).

2.7.8.3 Installation

Department approval shall be obtained for the proposed sign locations. An agreement shall be executed between the parties before the manufacture or installation of any signs. The governmental sponsor shall be responsible for installation and maintenance of signs as outlined in the agreement.

2.7.9 Signing Regions

2.7.9.1 General

In contrast to signing individual facilities from the closest numbered traffic route, the purpose of a signing region is to sign a large number of varying facilities in a systematic manner. It is similar to a signing district except it covers multiple municipalities and uses participation criteria unique to the area. It is a recognition that there is a limit to the number of signs that can be installed in a single location and that regional signing areas may be a tool for enhancing tourism and economic development. A regional signing area, properly implemented, will provide good directional signing for motorists. It will not alone increase tourism, but may positively impact the tourist’s visit. The key to its success is signing all worthwhile motorist destinations in a uniform and comprehensive manner.

2.7.9.2 Procedures

(Reserved)

2.7.10 Seasonal Attractions

2.7.10.1 Location of Seasonal TODSs

The order of installation of TODS sign panels, whether seasonal or non-seasonal, shall be as prescribed by [Section 2.7.6.5](#).

2.7.10.2 Covering or Removing Signs

When TODSs approved for businesses that are not operated on a year-round basis, the Department may require that they be removed or covered for any period of time greater than 15 days in which the business is not operating. The cover shall be of an opaque material of the same shape and size as the sign panel. The applicant shall be responsible for removal and storage of the sign panel, and posts if required, and for all costs associated with covering or removal of TODSs. Failure to comply with the need to cover or remove seasonal signs shall be justification for removal.

2.7.11 Removal of a TODS

2.7.11.1 General

The Department reserves the right to remove signs if space is needed for necessary official traffic-control devices or if the Department determines that the signing is not in the best interest of the Commonwealth or the traveling public. The attraction will not be reimbursed for the sign costs.

2.7.11.2 Removal of Signs

Except where otherwise provided in this chapter, TODSs may be removed by the Department for one or more of the following reasons:

- Failure to comply with eligibility requirements set forth in [Section 2.7.3](#) and [Section 2.7.4](#).
- Because of fire, crash, facility renovation, or similar causes, result in a qualified attraction becoming inoperable for a period of time exceeding 15 days, the TODSs shall be temporarily removed or covered, but the attraction shall not lose its priority, nor be required to reapply for placement of signs.
- If the facility closes for an extended period without a scheduled reopening date, or if in the opinion of the Department, the owner or responsible operator does not proceed with necessary repairs

within a reasonable time, the attraction shall lose its right to continued placement of its TODSs.

- If the facility ceases to operate in accordance with the TODS policy or changes ownership, its agreement with the Department is terminated, and the attraction shall lose its right to continued placement of TODSs until a new application is submitted and approved.
- If a signing district or a signing region is established and existing TODS or signs that are part of a previously established district or region do not provide for acceptable guidance continuity.

2.7.12 Application Procedure

2.7.12.1 Application

Attractions desiring signs shall request an application from the appropriate Engineering District Office, or for airport signing, contact the Bureau of Aviation as identified in [Exhibit 2.7-C](#). Each applicant shall provide the following information to the Engineering District:

- A completed application form. A separate application shall be submitted for each attraction site where TODSs are proposed.
- A map or neatly drawn sketch of the area to indicate the locations of the requested TODSs and the location of the attraction.
- A notarized seal on the application attesting to the authenticity of the signatures. If TODSs are installed and it is subsequently determined that the applicant was not truthful, the signs shall be removed and retained by the Department and the attraction shall be billed for the actual removal costs.

2.7.12.2 Department Review

A representative of the Engineering District will meet with the owner or representative of the attraction to discuss the eligible signs and to identify their locations, or will document this information in a memo to the applicant and request the applicant's concurrence. Signs not installed by the Department are subject to a final inspection by the Engineering District prior to final approval.

2.7.12.3 Approval Documentation

When TODSs are approved for installation by the local authorities or by private contractors along a State highway, an authorization letter will be issued by the Engineering District, which will specify the location(s) of the sign(s) and the approved message(s). All signs installed within the right-of-way of any State highway becomes the property of the Department, and are subject to removal by the Department if the applicant fails to abide by the terms of the TODS policy.

2.7.12.4 Excess Number of Eligible Attractions

If applications are received for any one intersection for more than the allowable number of signs, the order of priority shall be based on the date of receipt of a properly completed application and the required fee. Once approved for TODSs, the attraction shall remain eligible for these signs unless it is declared in violation of this policy.

2.7.12.5 Applicant Appeals

A business may appeal a denial for TODS under Title 2, Pa. C.S., Sections 501-508 (relating to the Administrative Agency Law), by submitting a written request for a hearing within 30 days of the date of the denial notification. Businesses should submit appeals to:

Administrative Docket Clerk
Pennsylvania Department of Transportation
400 North Street-9th Floor
Harrisburg, PA 17120-0096

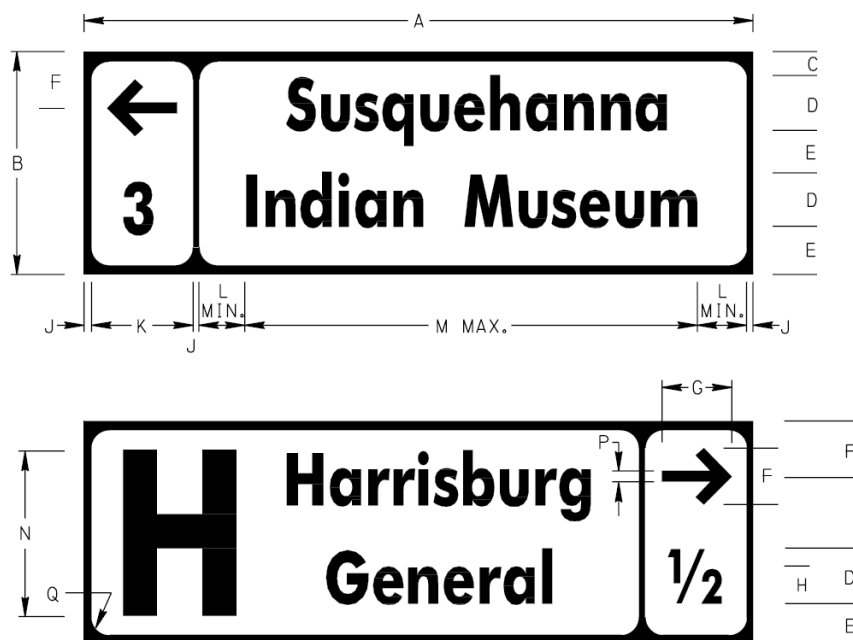
The written request shall include a filing fee made payable to the “Commonwealth of Pennsylvania” and a copy of the denial notification.

At the time of publication, filing fees are listed at 34 Pa.B. 4081 (see <http://www.pabulletin.com/secure/data/vol34/34-31/1410.html>). Filing fees for appealing a TODS decision is a Level II fee, and comes under the category of “motorist information sign matters.” Businesses may verify the current fee by contacting the Administrative Docket Clerk at 717-772-2741.

Exhibit 2.7-A Attraction Sign (D7-4)

(a) Justification. The Attraction Sign (D7-4) may be used on conventional highways to direct motorists to large tourist attractions in accordance with the Department's Attraction Signing Guidelines. One or two lines of legend may be used to identify the name or abbreviation of the attraction.

(b) Design. A rectangular directional box should generally be located on the left side of the sign for attractions that are straight ahead or to the left, or on the right side of the sign for attractions to the right. The box should generally include a directional arrow and a distance of 1/4, 1/2, 3/4 or the nearest whole mile, but the box may be eliminated if it is more appropriate to use directional information such as "DRIVEWAY ON LEFT", "LEFT 1000 FEET", etc., on the second line of legend. All legend should be "Clearview 1W, 2W or 3W" font, of the highest series possible. If necessary, the legend may be further condensed up to 35 percent. A generic symbol for hospital, campground or airport may be used in advance of the legend message.



DIMENSIONS – mm (IN)													
SIGN SIZE A x B	C	D	E	F	G	H	J	K	L	M	N	P	Q
1200 x 400 (48" x 16")	50 (2)	100 (4)	75 (3)	100 (4)	125 (5)	65 (2.6)	15 (0.6)	185 (7.4)	50 (2)	870 (34.8)	275 (11)	20 (0.8)	25 (1)
1800 x 600 (72" x 24")	90 (3.6)	150 (6)	105 (4.2)	165 (6.6)	188 (7.5)	100 (4)	20 (0.8)	280 (11.2)	75 (3)	1310 (52.4)	400 (16)	30 (1.2)	45 (1.8)

COLOR:

LEGEND AND BORDER:
WHITE (REFLECTORIZED)

BACKGROUND:
BLUE (REFLECTORIZED)

APPROVED FOR THE SECRETARY OF TRANSPORTATION

By : *Alan C. Rowe* Date : 01-03-06
Chief, Traffic Engineering and Operations Division
Bureau of Highway Safety and Traffic Engineering

Exhibit 2.7-B Acceptable Symbols

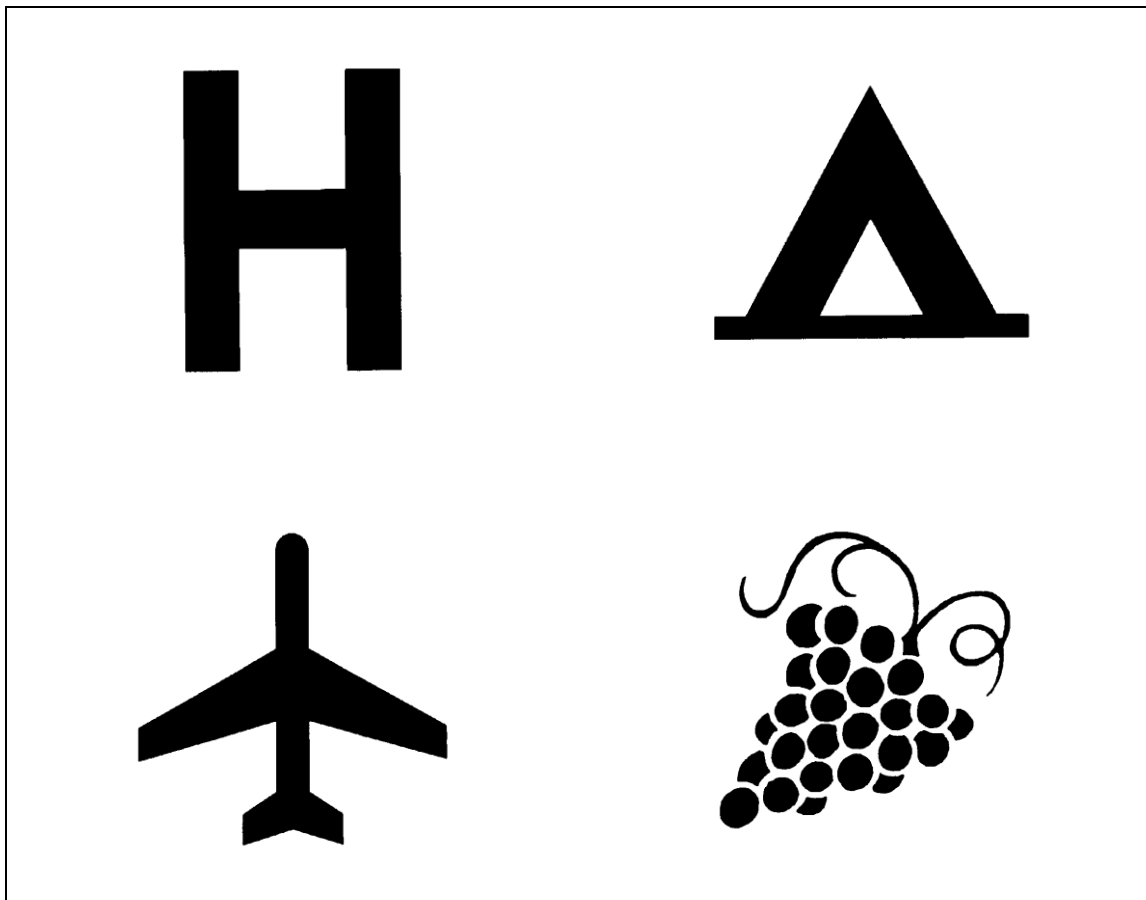


Exhibit 2.7-C District Contacts

DISTRICT	CONTACT	ADDRESS	COUNTIES
1-0	District Traffic Engineer	255 Elm Street Oil City, PA 16301 (814) 678-7181	Crawford, Erie, Forest, Mercer, Venango, Warren
2-0	District Traffic Engineer	P.O. Box 342 Clearfield, PA 16830 (814) 765-0498	Centre, Clearfield, Clinton, Cameron, McKean, Potter, Mifflin, Elk, Juniata
3-0	District Traffic Engineer	715 Jordan Ave. Montoursville, PA 17754 (570) 368-4260	Columbia, Lycoming, Montour, Northumberland, Snyder, Sullivan, Tioga, Union, Bradford
4-0	District Traffic Engineer	O'Neill Highway Dunmore, PA 18512 (570) 963-4819	Lackawanna, Luzerne, Pike, Susquehanna, Wayne, Wyoming
5-0	District Traffic Engineer	1002 Hamilton Blvd. Allentown, PA 18101-1013 (610) 817-4475	Berks, Carbon, Lehigh, Monroe, Northampton, Schuylkill
6-0	District Traffic Engineer	7000 Geerdes Boulevard King of Prussia, PA 19406 (610) 205-6550	Bucks, Chester, Delaware, Montgomery, Philadelphia
8-0	District Traffic Engineer	2140 Herr St. Harrisburg, PA 17103-1699 (717) 783-3981	Adams, Cumberland, Franklin, York, Dauphin, Lancaster, Lebanon, Perry
9-0	District Traffic Engineer	1620 N. Juniata St. Hollidaysburg, PA 16648 (814) 696-7231	Bedford, Blair, Cambria, Fulton, Huntingdon, Somerset
10-0	District Traffic Engineer	Route 286 South P.O. Box 429 Indiana, PA 15701 (724) 357-2845	Armstrong, Butler, Clarion, Indiana, Jefferson
11-0	District Traffic Engineer	45 Thoms Run Road Bridgeville, PA 15017 (412) 429-4975	Allegheny, Beaver, Lawrence
12-0	District Traffic Engineer	825 North Gallatin Ave. Ext. Uniontown, PA 15401-2105 (724) 439-7345	Greene, Washington, Westmoreland, Fayette
Bureau of Aviation	Bureau Director	Commonwealth Keystone Building, 6 th Floor 400 North Street Harrisburg, PA 17120 (717) 705-1260	

Exhibit 2.7-D Application for TODS

Please print or type answers to the following questions

1. Name of Business or Facility:
2. Mailing Address:
3. Name of contact person:
4. Phone number of contact person:
5. Directions to facility (include sketch):
6. Number of Years in Operation:
7. Dates and Hours of Operation:
8. Member of the following associations:
9. Description of Business or Facility (or enclose brochure):
10. Does the business or facility satisfy the General Eligibility Requirements set forth in Section 2.7.3 of this policy? _____ If no, explain discrepancies.
11. How many visitors during the last year?
12. Do you have billboards along any state highway? _____ If yes, please submit a sketch or map to identify the location(s) with your application.
13. If food is prepared, what is your Department of Agriculture License Number?
14. Do you understand your cost obligations as identified in Sections 2.7.7.2 and Section 2.7.11.1 ?
15. Name of attraction as you would like it to appear on signs (maximum of 2 lines, 16 characters/spaces per line).

- 16.** Indemnification. The Business shall indemnify, save harmless, and defend the Department from any and all claims, actions, damages, injuries, and/or expenses arising out of the Tourist Oriented Directional Signing (TODS) Program or Project or on account of any act, omission, neglect, or misconduct by the Business or a third party.

ACCORDINGLY, AS PART OF THE CONSIDERATION FOR THIS AGREEMENT, THE BUSINESS SPECIFICALLY AGREES THAT IT SHALL NOT ASSERT ANY CLAIM OF ANY NATURE WHATSOEVER AGAINST THE DEPARTMENT RESULTING FROM THIS CONTRACT OR THE ADMINISTRATION OF THE TOURIST ORIENTED DIRECTIONAL SIGNING PROGRAM.

The business further acknowledges that in the event a signing district or signing region, as discussed under [Sections 2.7.8](#) and [2.7.9](#) is established, their signs may be removed in accordance with [Section 2.7.11](#).

I hereby certify that the information provided on this application is true and correct and to the best of my knowledge *(name of the business or facility)* conforms to all Federal, State, and local regulations, including all health, sanitary and water requirements. The business or facility conforms to all municipal ordinances. It is also my understanding that if signs are installed, they may be removed by the Department as noted in [Section 2.7.7.4](#) and [Section 2.7.10](#). Further, the business agrees to notify the Department if the hours of operation change or if they terminate operations.

Sworn before me this _____ day of _____, 20____.

Notary:

Signature of applicant: _____

Privately operated businesses and facilities are to obtain verification from each local municipality within which TODSs are being requested to the effect that the local municipality does not have any local ordinance prohibiting their installation. The following signature blocks should be used.

- 17.** I hereby confirm that the installation of TODS signing for the above applicant does not conflict with any local ordinance.

Name of Municipality:

Signature of municipal representative: _____

Telephone Number:

- 18.** I hereby confirm that the installation of TODS signing for the above applicant does not conflict with any local ordinance.

Name of Municipality:

Signature of municipal representative: _____

Telephone Number:

Exhibit 2.7-E Application for Signing District

Please print or type the following information.

1. Name of Governmental Sponsor:
2. Mailing Address:
3. Name of contact person:
4. Phone number of contact person:
5. Has a map of the proposed signing district been included? _____
6. Name of Consultant:
7. Address of Consultant:
8. If consultant has not been hired, will the service of one be used? _____ If not, who will design the system?:
9. Have all illegal signs been removed? _____
10. Has an inventory of existing permitted signs been completed? _____
11. Does the governmental sponsor understand that all businesses or facilities that participate in the signing district must meet one of the definitions in Section 2.7.2 and satisfy the General Eligibility Requirements set forth in Section 2.7.3 of this policy? Yes _____ No _____
12. Do you have a copy of the PennDOT Toolbox for the Development of Wayfinding Signing Regions? _____ This Toolbox provides the fabrication details for an alternate sign design.

13. Are there any plans contemplated to expand the signing district beyond its boundaries and become a signing region? If yes, is there a timetable (attach or explain)?

14. Note: Execution of an agreement between the governmental sponsor and the Commonwealth designating the signing district must be completed before construction of the signs begins.

15. Do you understand all costs will be borne by the governmental sponsor? Further, the governmental sponsor may recoup some or all of the administrative costs of the program by the establishment of a fee structure for applicants.

16. Indemnification. The Governmental Sponsor shall indemnify, save harmless, and defend the Department from any and all claims, actions, damages, injuries, and/or expenses arising out of the subject Signing District or on account of any act, omission, neglect, or misconduct by an applicant or a third party.

The governmental sponsor further acknowledges that in the event a signing region, as discussed under [Section 2.7.9](#) is established, the signs may be removed in accordance with [Section 2.7.11](#).

I hereby certify that the information provided on this application is true and correct and to the best of my knowledge, and _____ (name of Governmental Sponsor) is fully prepared to move forward to completion of the signing district. It is also my understanding that if signs are installed, they may be removed by the Department as detailed in [Section 2.7.7.4](#) or [Section 2.7.11](#). Further, the business agrees to notify the Department if the hours of operation change or if they terminate operations.

Sworn before me this _____ day of _____, 20_____.

Notary:

Signature of Representative: _____